

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

BOARD ORDER NO. 6-96-18
WDID NO. 6A180004501

REVISED WASTE DISCHARGE REQUIREMENTS

FOR

LEAVITT LAKE COMMUNITY SERVICES DISTRICT
WASTEWATER TREATMENT AND DISPOSAL FACILITIES

Lassen County

The California Regional Water Quality Control Board, Lahontan Region (Regional Board) finds:

1. Discharger

On July 24, 1995, Linda R Hyatt, Chairperson of the Leavitt Lake Community Services District submitted a complete report of waste discharge for modifications to the Leavitt Lake Community Services District wastewater treatment and disposal facility. For the purposes of this Order, the Leavitt Lake Community Services District is referred to as the "Discharger."

2. Facility

The Leavitt Lake Community Services District's wastewater treatment and disposal ponds and artificial wetland is the facility from which the discharge occurs. For the purposes of this Order, the Leavitt Lake Community Services District's wastewater treatment and disposal facility is referred to as the "Facility". The Facility discharges secondary treated domestic sewage effluent.

3. History of Previous Regulation by the Regional Board

The Regional Board previously established waste discharge requirements for the Facility under Board Order No. 6-72-26 which was adopted on March 30, 1972, and revised by Regional Board Order No. 6-80-37 on April 10, 1980.

4. Reason for Action

The Regional Board is updating waste discharge requirements for the Facility to periodically review and update waste discharge requirements. The purpose of this Order is to establish waste discharge requirements which reflect recent modifications to the Discharger's treatment and disposal process, and to remove prohibitions relating to percolation of wastewater in order to allow additional treatment by artificial wetlands.

5. Facility Location

The Facility is located approximately eight miles east of Susanville, California, in the SE ¼ of the NW ¼ of Section 16, T29N, R13E, MDB&M, and within APN 117-260-86-11, as shown on Attachment "A", which is made part of this Order.

6. Description of Facility and Discharge

Approximately 238 residences are served by the Facility which includes a collection system, two small lift stations, and a wastewater disposal facility consisting of seven evaporation disposal ponds (lined with synthetic liners) and an artificial wetland disposal area. The current average wastewater flow to the Facility is approximately 0.072 mgd. The disposal ponds and artificial wetlands are designed to treat and dispose an average 0.096 mgd over a 12-month period.

7. Authorized Disposal Site

The seven evaporation disposal ponds and the wetland disposal area are the only authorized disposal sites for wastewater. These authorized disposal sites are located on land owned by the Discharger. No disposal sites for sludge are authorized by these waste discharge requirements.

8. Site Geology

The Facility lies within the Honey Lake Valley, a part of the Basin Range Geomorphic Province, which extends into Nevada. It is bounded on the southwest by the Sierra Nevada Geomorphic Province and to the north and west by volcanics of the Modoc Plateau and Cascade Range Provinces.

9. Site Hydrology

The Facility is adjacent to an irrigation ditch and to Leavitt Lake; however, these surface waters are not hydrologically connected to the site. The receiving waters are the ground waters of the Honey Lake Valley Basin.

10. Site Hydrogeology

The proposed Facility lies over the Honey Lake Valley ground water basin, a 490 square mile basin with internal drainage, which stores an estimated 16 million acre-feet of water (California Department of Water Resources, *California's Ground Water*, 1975). Local ground water generally follows the south to north topographic gradient; however, this may be reversed at this location due to the influences of Leavitt Lake.

Groundwater levels have averaged approximately 13 feet below ground level over the past six years. Ground water quality in the vicinity of the evaporation ponds has been monitored at seven 20-foot deep wells. Nitrate levels in two of seven onsite monitoring wells have frequently exceeded the drinking water standard, though the

cause of these elevated nitrate levels has not been determined or positively attributed to the operation of the adjacent sewage ponds. Additional ground water monitoring wells have recently been constructed by the Discharger. This Order requires additional ground water monitoring utilizing these wells to determine the causes for elevated nitrate levels in the ground water above the drinking water standard (45 mg/l as NO₃).

11. Receiving Waters

The receiving waters are the ground waters of the Honey Lake Valley Basin (Department of Water Resources Hydrologic Basin No. 6-4 and Unit No. 637.20).

12. Water Quality Control Plan for the Lahontan Region

The Regional Board adopted a Water Quality Control Plan for the Lahontan Region (Basin Plan) on March 31, 1995 and this Order implements the Basin Plan as amended.

13. Beneficial Uses of Ground Water

The beneficial uses of the ground waters of the Honey Lake Valley Basin as set forth and defined in the Basin Plan are:

- a. municipal and domestic supply;
- b. agricultural supply;
- c. industrial service supply;
- d. freshwater replenishment; and
- e. wildlife habitat.

14. California Environmental Quality Act Compliance

This project involves the continued operation and maintenance of an existing facility and as such is exempt from the provisions of the California Environmental Quality Act (Public Resources Code, §21000 et seq. in accordance with Title 14, California Code of Regulations, Chapter 3, §15301.

15. Notification of Interested Parties

The Regional Board has notified the Discharger and interested parties of its intent to amend waste discharge requirements for the discharge.

16. Consideration of Public Comments

The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that the Discharger shall comply with the following:

I. DISCHARGE SPECIFICATIONS

A. Discharge/Effluent Limitations

1. The total wastewater flow to the treatment and disposal facilities over any 12-month period shall not exceed 35.0 million gallons (0.096 mgd average flow).
2. Wastewater made available for discharge to the artificial wetlands disposal area shall not contain pollutant concentrations which exceed the following limits:

<u>Parameter</u>	<u>Units</u>	<u>Mean¹</u>	<u>Maximum</u>
BOD ²	mg/l	30	45
Suspended Solids	mg/l	30	45

3. Wastewater made available for discharge to the artificial wetlands disposal area shall have a pH of not less than 6 pH units nor more than 9 pH units; however, a pH over 9.0 resulting from a biological process within the treatment plant may be allowed.

B. Receiving Water Limitations

The discharge of waste shall not cause the presence of the following substances or conditions in ground waters of the Honey Lake Valley Basin:

1. Any perceptible color, odor, taste or foaming.
2. Coliform organisms attributable to human wastes.
3. Toxic substances in concentrations that individually, collectively, or cumulatively cause detrimental physiological responses in human, plant, animal, or aquatic life.

¹ The arithmetic mean of lab results for all effluent samples collected during the month.

² Biochemical Oxygen Demand (5 day, 20°C). Samples from oxidation ponds and other pond-type systems should be filtered (using a No. 1 Whatman filter, or equivalent) and reseeded with unfiltered sample. Other types of treatment units should analyze unfiltered samples.

4. Identifiable chlorinated hydrocarbons, organophosphates, carbamates, and other pesticide and herbicide groups, in summation, in excess of the lowest detectable levels.
5. Concentrations of chemical constituents in excess of the maximum contaminant levels or secondary maximum contaminant levels based upon drinking water standards specified by the more restrictive of the California Code of Regulations, Title 22, Division 4, Chapter 15, or 40 CFR, Part 141.

C. General Requirements and Prohibitions

1. There shall be no discharge, bypass, or diversion of raw or partially treated sewage, sewage sludge, grease, or oils from the collection, transport, treatment, or disposal facilities to adjacent land areas or surface waters.
2. Surface flow or visible discharge of sewage or sewage effluent at, or from, the authorized disposal site to adjacent land areas or surface waters is prohibited.
3. The vertical distance between the liquid surface elevation and the lowest point of a pond dike or the invert of an overflow structure shall not be less than two (2) feet.
4. The discharge shall not cause a pollution as defined in Section 13050 of the California Water Code, or a threatened pollution.
5. Neither the treatment nor the discharge shall cause a nuisance as defined in Section 13050 of the California Water Code.
6. The discharge of wastewater except to the authorized disposal site is prohibited.
7. The integrity of any pond liners shall be maintained throughout the life of the ponds and shall not be diminished as the result of any maintenance or cleaning operation.

II. PROVISIONS

A. Rescission of Waste Discharge Requirements

Board Order No. 6-80-37 is hereby rescinded.

B. Standard Provisions

The Discharger shall comply with the "Standard Provisions for Waste Discharge Requirements," dated September 1, 1994, in Attachment "B", which is made part of this Order.

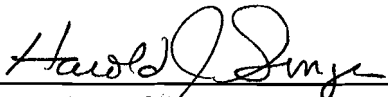
C. Monitoring and Reporting

1. Pursuant to Section 13267(b) of the California Water Code, the Discharger shall comply with the Monitoring and Reporting Program No. 96-18 as specified by the Executive Officer.
2. The Discharger shall comply with the "General Provisions for Monitoring and Reporting," dated September 1, 1994, which is attached to and made part of the Monitoring and Reporting Program.

D. Operator Certification

The facility shall be supervised by a person possessing a wastewater treatment plant operator certificate of appropriate grade pursuant to Chapter 3, Subchapter 4, Title 23, California Code of Regulation.

I, Harold J. Singer, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Lahontan Region, on March 14, 1996.



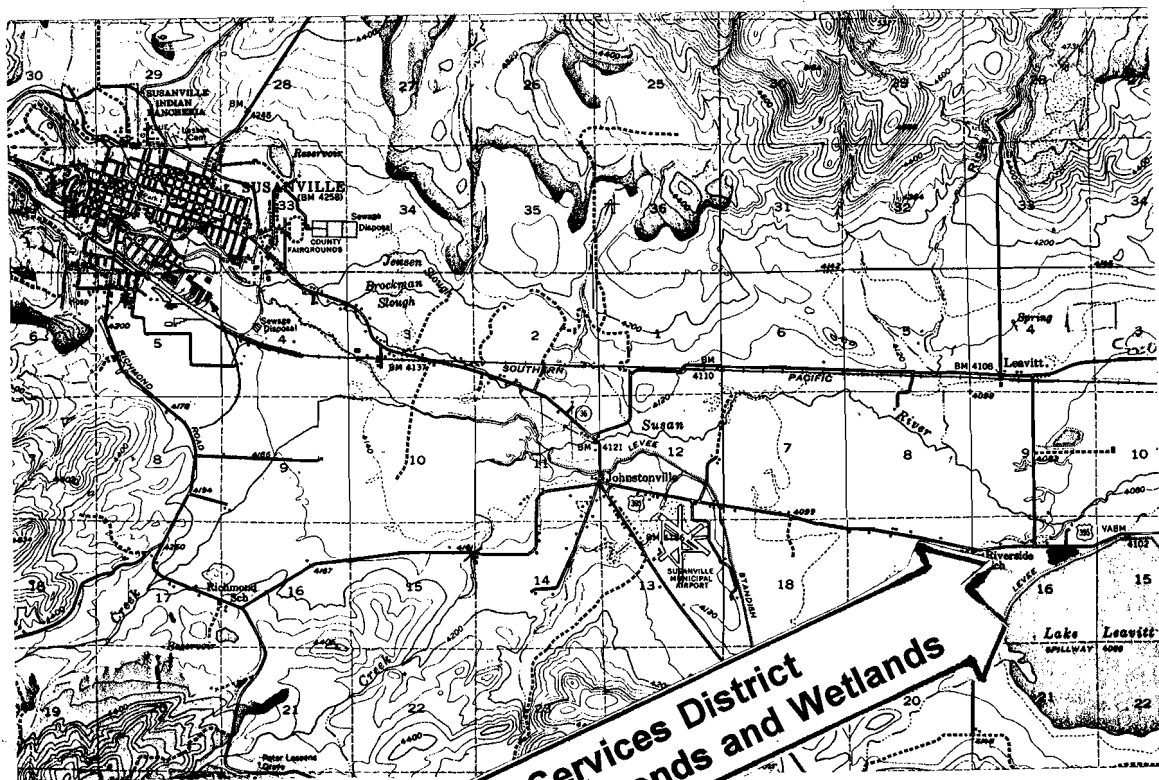
HAROLD J. SINGER
EXECUTIVE OFFICER

Attachments:

- A. Location Map
- B. Standard Provisions for Waste Discharge Requirements

Attachment "A"

LOCATION MAP
LEAVITT LAKE COMMUNITY SERVICES DISTRICT



Leavitt Lake Community Services District
Sewage Disposal Treatment Ponds and Wetlands

scale 1"=1.5 miles



CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

STANDARD PROVISIONS
FOR WASTE DISCHARGE REQUIREMENTS

1. **Inspection and Entry**

The discharger shall permit Regional Board staff:

- a. to enter upon premises in which an effluent source is located or in which any required records are kept;
- b. to copy any records relating to the discharge or relating to compliance with the waste discharge requirements;
- c. to inspect monitoring equipment or records; and
- d. to sample any discharge.

2. **Reporting Requirements**

- a. Pursuant to California Water Code 13267(b), the discharger shall immediately notify the Regional Board by telephone whenever an adverse condition occurred as a result of this discharge; written confirmation shall follow within two weeks. An adverse condition includes, but is not limited to, spills of petroleum products or toxic chemicals, or damage to control facilities that could affect compliance.
- b. Pursuant to California Water Code Section 13260 (c), any proposed material change in the character of the waste, manner or method of treatment or disposal, increase of discharge, or location of discharge, shall be reported to the Regional Board at least 120 days in advance of implementation of any such proposal. This shall include, but not be limited to, all significant soil disturbances.
- c. The owner(s) of, and discharger upon, property subject to waste discharge requirements shall be considered to have a continuing responsibility for ensuring compliance with applicable waste discharge requirements in the operations or use of the owned property. Pursuant to California Water Code Section 13260(c), any change in the ownership and/or operation of property subject to the waste discharge requirements shall be reported to the Regional Board. Notification of applicable waste discharge requirements shall be furnished in writing to the new owners and/or operators and a copy of such notification shall be sent to the Regional Board.
- d. If a discharger becomes aware that any information submitted to the Regional Board is incorrect, the discharger shall immediately notify the Regional Board, in writing, and correct that information.

- e. Reports required by the waste discharge requirements, and other information requested by the Regional Board, must be signed by a duly authorized representative of the discharger. Under Section 13268 of the California Water Code, any person failing or refusing to furnish technical or monitoring reports, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1000) for each day of violation.
- f. If the discharger becomes aware that their waste discharge requirements are no longer needed (because the project will not be built or the discharge will cease) the discharger shall notify the Regional Board in writing and request that their waste discharge requirements be rescinded.

3. Right to Revise Waste Discharge Requirements

The Board reserves the privilege of changing all or any portion of the waste discharge requirements upon legal notice to and after opportunity to be heard is given to all concerned parties.

4. Duty to Comply

Failure to comply with the waste discharge requirements may constitute a violation of the California Water Code and is grounds for enforcement action or for permit termination, revocation and reissuance, or modification.

5. Duty to Mitigate

The discharger shall take all reasonable steps to minimize or prevent any discharge in violation of the waste discharge requirements which has a reasonable likelihood of adversely affecting human health or the environment.

6. Proper Operation and Maintenance

The discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the discharger to achieve compliance with the waste discharge requirements. Proper operation and maintenance includes adequate laboratory control, where appropriate, and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by the discharger, when necessary to achieve compliance with the conditions of the waste discharge requirements.

7. Waste Discharge Requirement Actions

The waste discharge requirements may be modified, revoked and reissued, or terminated for cause. The filing of a request by the discharger for waste discharge requirement modification, revocation and reissuance, termination, or a notification of planned changes or anticipated noncompliance, does not stay any of the waste discharge requirements conditions.

8. Property Rights

The waste discharge requirements do not convey any property rights of any sort, or any exclusive privileges, nor does it authorize any injury to private property or any invasion of personal rights, nor any infringement of federal, state or local laws or regulations.

9. Enforcement

The California Water Code provides for civil liability and criminal penalties for violations or threatened violations of the waste discharge requirements including imposition of civil liability or referral to the Attorney General.

10. Availability

A copy of the waste discharge requirements shall kept and maintained by the discharger and be available at all times to operating personnel.

11. Severability

Provisions of the waste discharge requirements are severable. If any provision of the requirements is found invalid, the remainder of the requirements shall not be affected.

12. Public Access

General public access shall be effectively excluded from treatment and disposal facilities.

13. Transfers

Providing there is no material change in the operation of the facility, this Order may be transferred to a new owner or operation. The owner/operator must request the transfer in writing and receive written approval from the Regional Board Executive Officer.

14. Definitions

- a. "Surface waters" as used in this Order, include, but are not limited to, live streams, either perennial or ephemeral, which flow in natural or artificial water courses and natural lakes and artificial impoundments of waters. "Surface waters" does not include artificial water courses or impoundments used exclusively for wastewater disposal.
- b. "Ground waters" as used in this Order, include, but are not limited to, all subsurface waters being above atmospheric pressure and the capillary fringe of these waters.

15. Storm Protection

All facilities used for collection, transport, treatment, storage, or disposal of waste shall be adequately protected against overflow, washout, inundation, structural damage or a significant reduction in efficiency resulting from a storm or flood having a recurrence of once in 100 years.

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

MONITORING AND REPORTING PROGRAM NO. 96-18
WDID NO. 6A180004501

FOR

LEAVITT LAKE COMMUNITY SERVICE DISTRICT
WASTEWATER TREATMENT AND DISPOSAL FACILITIES

Lassen County

I. MONITORING

A. Flow Monitoring

The Discharger shall monitor the following:

1. The total volume, in million gallons, of wastewater flow to the treatment facility for each month.
2. The freeboard (distance from the top of the lowest part of the dike to the wastewater surface in the pond) measured each month in each surface impoundment. If a surface impoundment does not contain wastewater, indicate that it is empty.

B. Plant Influent Monitoring

1. Beginning immediately, grab samples of the influent shall be collected and analyzed to determine the magnitude of the following parameters:

<u>Parameter</u>	<u>Units</u>	<u>Frequency</u>
Total Kjeldahl Nitrogen	mg/l as N	monthly

C. Plant Effluent Monitoring

1. Beginning immediately, grab samples of the effluent from west pond #4 and east pond #3 shall be collected and analyzed to determine the magnitude of the following parameters:

<u>Parameter</u>	<u>Units</u>	<u>Frequency</u>
Biochemical Oxygen Demand	mg/l	monthly
Suspended Solids	mg/l	monthly
Nitrate Nitrogen	mg/l as N	monthly
Total Kjeldahl Nitrogen	mg/l as N	monthly

D. Ground Water Monitoring

1. Groundwater samples shall be taken from each of the twelve groundwater monitoring wells as shown in Attachment "A" according to the following schedule:

<u>Parameter</u>	<u>Units</u>	<u>Frequency</u>
Nitrate Nitrogen	mg/l as N	monthly
Chloride	mg/l	monthly

2. Prior to sampling, each well shall be pumped or bailed. Temperature and pH shall be recorded after each well volume is purged. Water shall be purged until temperature and pH readings stabilize, and shall be not less than three (3) volumes of the casing. If there is insufficient water in the well to remove three volumes the well shall be purged to dryness. The well shall be allowed to recover for 24 hours before sampling.
3. The depth to ground water in each well shall be measured and recorded each time a monitoring well is sampled.

II. REPORTING

A. General Provisions

The Discharger shall comply with the "General Provisions for Monitoring and Reporting," dated September 1, 1994, which is attached to and made part of this Monitoring and Reporting Program.

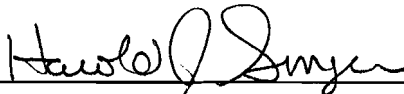
B. Submittal Periods

By not later than the 15th day of the month following the adoption of this Order, the Discharger shall submit a monitoring report including the preceding information to the Regional Board. Subsequent monitoring reports shall be submitted to the Regional Board by the 15th day following each quarter.

C. Annual Report

By January 15 of each year, the Discharger shall submit an annual report to the Regional Board with the following information:

1. The compliance record, and corrective actions taken or planned which may be needed to bring the discharge into full compliance with the waste discharge requirements.
2. Graphical or tabular presentation of the monitoring data obtained for the previous year.



HAROLD J. SINGER
EXECUTIVE OFFICER

Dated: Mar 14, 1996

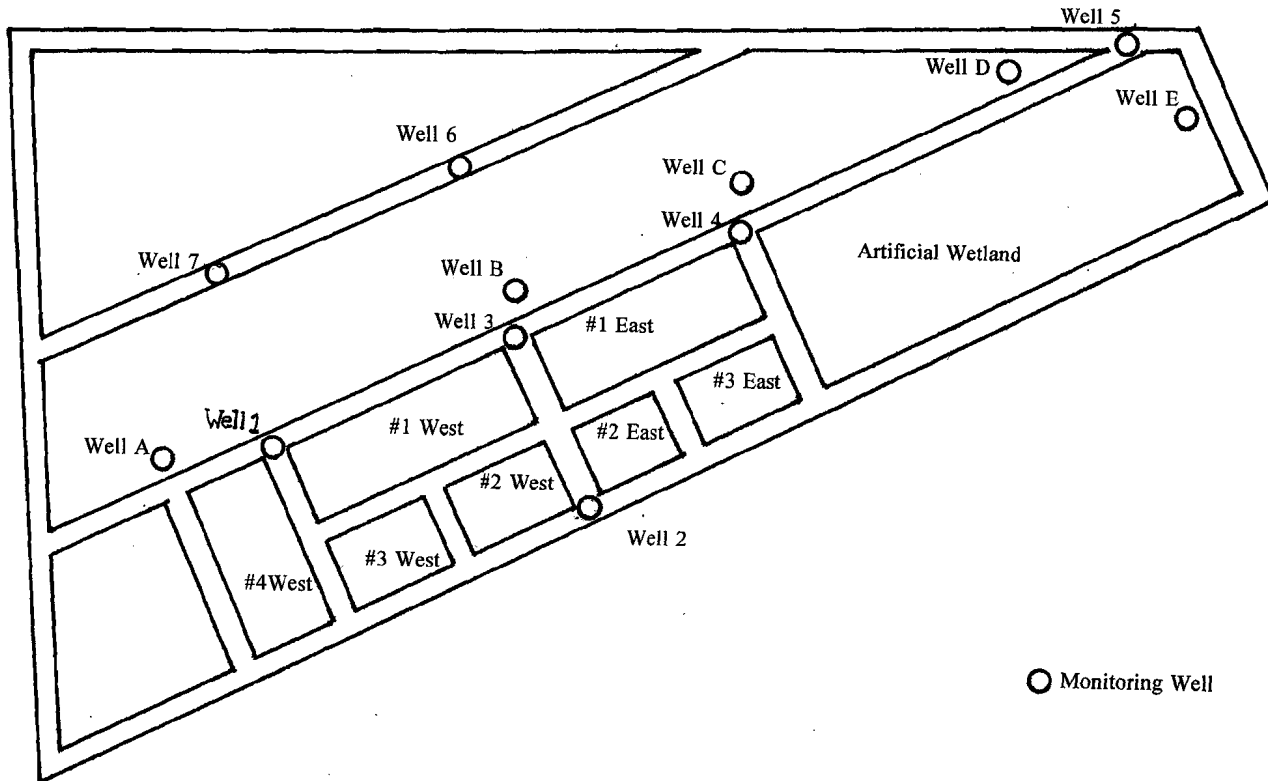
Attachments:

- a. Location of Sampling Sites and Monitoring Wells
- b. General Provisions for Monitoring and Reporting

Attachment "A"

LOCATION OF SAMPLING SITES AND MONITORING WELLS

LEAVITT LAKE COMMUNITY SERVICE DISTRICT



NOT TO SCALE

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LAHONTAN REGION

GENERAL PROVISIONS
FOR MONITORING AND REPORTING

1. **SAMPLING AND ANALYSIS**

- a. All analyses shall be performed in accordance with the current edition(s) of the following documents:
 - i. Standard Methods for the Examination of Water and Wastewater
 - ii. Methods for Chemical Analysis of Water and Wastes, EPA
- b. All analyses shall be performed in a laboratory certified to perform such analyses by the California State Department of Health Services or a laboratory approved by the Regional Board Executive Officer. Specific methods of analysis must be identified on each laboratory report.
- c. Any modifications to the above methods to eliminate known interferences shall be reported with the sample results. The methods used shall also be reported. If methods other than EPA-approved methods or Standard Methods are used, the exact methodology must be submitted for review and must be approved by the Regional Board Executive Officer prior to use.
- d. The discharger shall establish chain-of-custody procedures to insure that specific individuals are responsible for sample integrity from commencement of sample collection through delivery to an approved laboratory. Sample collection, storage, and analysis shall be conducted in accordance with an approved Sampling and Analysis Plan (SAP). The most recent version of the approved SAP shall be kept at the facility.
- e. The discharger shall calibrate and perform maintenance procedures on all monitoring instruments and equipment to ensure accuracy of measurements, or shall insure that both activities will be conducted. The calibration of any wastewater flow measuring device shall be recorded and maintained in the permanent log book described in 2.b, below.
- f. A grab sample is defined as an individual sample collected in fewer than 15 minutes.
- g. A composite sample is defined as a combination of no fewer than eight individual samples obtained over the specified sampling period at equal intervals. The volume of each individual sample shall be proportional to the discharge flow rate at the time of sampling. The sampling period shall equal the discharge period, or 24 hours, whichever period is shorter.

2. OPERATIONAL REQUIREMENTS

a. Sample Results

Pursuant to California Water Code Section 13267(b), the discharger shall maintain all sampling and analytical results including: strip charts; date, exact place, and time of sampling; date analyses were performed; sample collector's name; analyst's name; analytical techniques used; and results of all analyses. Such records shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.

b. Operational Log

Pursuant to California Water Code Section 13267(b), an operation and maintenance log shall be maintained at the facility. All monitoring and reporting data shall be recorded in a permanent log book.

3. REPORTING

- a. For every item where the requirements are not met, the discharger shall submit a statement of the actions undertaken or proposed which will bring the discharge into full compliance with requirements at the earliest time, and shall submit a timetable for correction.
- b. Pursuant to California Water Code Section 13267(b), all sampling and analytical results shall be made available to the Regional Board upon request. Results shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.
- c. The discharger shall provide a brief summary of any operational problems and maintenance activities to the Board with each monitoring report. Any modifications or additions to, or any major maintenance conducted on, or any major problems occurring to the wastewater conveyance system, treatment facilities, or disposal facilities shall be included in this summary.
- d. Monitoring reports shall be signed by:
 - i. In the case of a corporation, by a principal executive officer at least of the level of vice-president or his duly authorized representative, if such representative is responsible for the overall operation of the facility from which the discharge originates;
 - ii. In the case of a partnership, by a general partner;
 - iii. In the case of a sole proprietorship, by the proprietor; or

- iv. In the case of a municipal, state or other public facility, by either a principal executive officer, ranking elected official, or other duly authorized employee.
- e. Monitoring reports are to include the following:
 - i. Name and telephone number of individual who can answer questions about the report.
 - ii. The Monitoring and Reporting Program Number.
 - iii. WDID Number.
- f. Modifications

This Monitoring and Reporting Program may be modified at the discretion of the Regional Board Executive Officer.

4. NONCOMPLIANCE

Under Section 13268 of the Water Code, any person failing or refusing to furnish technical or monitoring reports, or falsifying any information provided therein, is guilty of a misdemeanor and may be liable civilly in an amount of up to one thousand dollars (\$1,000) for each day of violation.